

trusts for purchase and settlement) (*a*), but some further observations may here be introduced, with reference to the particular branch of executory trusts now under consideration.

33. **Impeachment for waste.** — When trustees have to settle the estate upon a person for life with remainders over or in strict settlement, the question at once suggests itself whether the tenant for life is or not to be made *impeachable for waste*. The *primâ facie* rule appears to be that he shall (*b*), but there are important exceptions. Thus, where a larger estate than for life is given in the first instance, but it is after- [*508] wards * cut down by directions for a strict settlement, the Court does not consider itself justified in reducing the interest first taken beyond the clear intention, but limits a life estate without impeachment for waste (*a*). Again, where a testator directed a settlement to be made on A. and the heirs of his body (which would have left him tenant in tail), and then added that “it was never to be in the power of A. to dock the entail during his life,” A. was declared to be tenant for life without impeachment of waste (*b*). And the like construction prevailed where a testator constituted A. “his heir,” but desired that it should “be secured for the benefit of A.’s family” (*c*). Again, where a testator directed the property to be “closely entailed,” the Court cut it down to a tenancy for life with remainder to the issue, but exempted the tenant for life from impeachment for waste (*d*).

34. **“To be strictly settled.”** — In another case, where the direction was that the estate should be “*strictly settled*,” the limitation to the tenant for life was without impeachment for waste (*e*), and V. C. Wood observed, with reference to

(*a*) See *ante*, p. 113.

(*b*) *Davenport v. Davenport*, 1 H. M. 775; *Stanley v. Coulthurst*, 10 L. R. Eq. 259.

(*a*) *Davenport v. Davenport*, 1 H. & M. 779, *per* V. C. Wood; *Sackville-West v. Viscount Holmesdale*, 4 L. R. H. L. 543.

(*b*) *Leonard v. Sussex*, 2 Vern. 526.

See 1 H. & M. 778.

(*c*) *White v. Briggs*, 15 Sim. 17 & 300.

(*d*) *Woolmore v. Burrows*, 1 Sim. 512. See 1 H. & M. 778.

(*e*) *Banks v. Le Despencer*, 10 Sim. 576; 11 Sim. 508; and see *Loch v. Bagley*, 4 L. R. Eq. 122.